

Jon Niermann, *Chairman*
Emily Lindley, *Commissioner*
Bobby Janecka, *Commissioner*
Toby Baker, *Executive Director*



Vic McWherter, Public Interest Counsel

TEXAS COMMISSION ON ENVIRONMENTAL QUALITY

Protecting Texas by Reducing and Preventing Pollution

May 14, 2021

Laurie Gharis, Chief Clerk
Texas Commission on Environmental Quality
Office of the Chief Clerk (MC-105)
P.O. Box 13087
Austin, Texas 78711-3087

RE: **SELECT ENERGY SERVICES, LLC**
TCEQ DOCKET NO. 2020-1424-WR

Dear Ms. Gharis:

Enclosed for filing is the Office of Public Interest Counsel's Response to Requests for Hearing in the above-entitled matter.

Sincerely,

A handwritten signature in black ink, appearing to read "Eli Martinez".

Eli Martinez, Attorney
Assistant Public Interest Counsel

cc: Mailing List

Enclosure

TCEQ DOCKET NO. 2020-1424-WR

**IN THE MATTER OF THE
APPLICATION BY SELECT
ENERGY SERVICES, LLC FOR
TEMPORARY WATER USE
PERMIT NO. WRTP 13674**

**BEFORE THE
TEXAS COMMISSION ON
ENVIRONMENTAL QUALITY**

**THE OFFICE OF PUBLIC INTEREST COUNSEL'S RESPONSE
TO REQUESTS FOR HEARING**

TO THE HONORABLE MEMBERS OF THE TEXAS COMMISSION ON
ENVIRONMENTAL QUALITY:

COMES NOW, the Office of Public Interest Counsel (“OPIC”) of the Texas Commission on Environmental Quality (the “Commission” or “TCEQ”) and files this Response to Requests for Hearing in the above-referenced matter, and would respectfully recommend granting the hearing requests of Clifford B. Baker on behalf of the Baker Family River Farm, GBRA, Zachary X. Yanta and Linda A. Yanta. OPIC also recommends that the Commission deny the hearing request of ADD Corporation. In support of its recommendation, OPIC submits the following:

I. INTRODUCTION

Select Energy Services, LLC (Applicant) has applied for a temporary water use permit to divert and use not to exceed 387 acre-feet of water within a period of three years from a point on the San Antonio River, San Antonio River Basin, at a maximum diversion rate of 11.64 cfs (5,226 gpm), for mining purposes in Karnes County. Water will be diverted from a point on the San Antonio River at Latitude 28.889311° N, Longitude 97.789017° W in Karnes County in Zip Code 78119.

The TCEQ received the application and fees on January 21, 2020. Additional information and fees were received on April 6, 2020. The application was declared administratively complete and accepted for filing with the Office of the Chief Clerk on April

14, 2020. The Executive Director has since completed technical review and prepared a draft permit. The public comment and contested case hearing request periods ended on September 22, 2020. The TCEQ received requests for a contested case hearing, as further discussed below.

II. APPLICABLE LAW

Section 11.138 of the Texas Water Code (“TWC”) provides that “the commission may issue temporary permits for beneficial purposes to the extent that they do not interfere with or adversely affect prior appropriations or vested rights on the stream from which water is to be diverted under such temporary permit.”¹ Further, the Commission may not issue a temporary permit for a period exceeding three calendar years.²

A. Requirements for Contested Case Hearing Requests

As the application was declared administratively complete after September 1, 1999 and was not filed under TWC §§ 11.036, 11.041, or 12.013, it is subject to the requirements of Title 30, Chapter 55, Subchapter G, sections 55.250–55.256 of the Texas Administrative Code (“TAC”).³ Under those provisions, a contested case hearing may be requested by the Commission, the Executive Director, the applicant, and affected persons, when authorized by law.⁴

A hearing requestor must make their request as specified in the notice of the application.⁵ As provided in the notice of the application, to be considered timely, hearing requests must have been submitted to the Commission by September 22, 2020. For applications for temporary water use permits, emergency water use permits, or authorization to divert water from unsponsored and

¹ TWC § 11.138(a).

² TWC § 11.138(d).

³ 30 TAC § 55.250.

⁴ 30 TAC § 55.251(a).

⁵ 30 TAC § 55.251(c)(4).

storage-limited projects for domestic and livestock purposes, the Commission may conduct such hearings as it deems appropriate.⁶

A hearing request must “substantially comply” with the requirements of 30 TAC § 55.251(c). A request should “identify the person's personal justiciable interest affected by the application including a brief, but specific, written statement explaining in plain language the requestor's location and distance relative to the activity that is the subject of the application and how and why the requestor believes he or she will be affected by the activity in a manner not common to members of the general public.”⁷

An affected person is “one who has a personal justiciable interest related to a legal right, duty, privilege, power, or economic interest affected by the application.”⁸ Section 55.256(c) provides relevant factors to be considered in determining whether a person is affected. These factors include, but are not limited to:

- (1) whether the interest claimed is one protected by the law under which the application will be considered;
- (2) distance restrictions or other limitations imposed by law on the affected interest;
- (3) whether a reasonable relationship exists between the interest claimed and the activity regulated;
- (4) likely impact of the regulated activity on the health, safety, and use of property of the person;
- (5) likely impact of the regulated activity on use of the impacted natural resource by the person; and
- (6) for governmental entities, their statutory authority over or interest in the issues relevant to the application.⁹

The Commission shall grant a request for a contested case hearing if: (1) the request is made by the applicant; or (2) the request is made by an affected person, timely filed with the

⁶ 30 TAC § 295.174.

⁷ 30 TAC § 55.251(b), (c).

⁸ 30 TAC § 55.256(a).

⁹ 30 TAC § 55.256(c).

chief clerk, and made pursuant to a right to hearing authorized by law.¹⁰

III. ANALYSIS OF HEARING REQUESTS

A. Determination of Affected Persons

a. Clifford B. Baker

On September 22, 2020, the Commission received a hearing request from Clifford B. Baker on behalf of the Baker Family River Farm. The Baker Family River Farm owns Agricultural Permit Number 5622, which authorizes diversions from the San Antonio River. Mr. Baker is concerned that the proposed permit will limit water resources available for other, senior water rights along the San Antonio River. Mr. Baker indicates that measurements taken at the Goliad gauge determine whether streamflow is sufficient for the Baker Family River Farm to divert under their agricultural permit. However, if water is diverted under the proposed permit, it will not reach the Goliad gauge and less water will ultimately be available under the Baker Family River Farm permit. Furthermore, Mr. Baker is concerned that potential impacts will be amplified by any off-channel reservoirs utilized by the Applicant to capture authorized diversions.

The executive director of the TCEQ has created a map demonstrating that the Baker property is along the diversion reach in the proposed permit, approximately 17.5 miles from Applicant's proposed diversion point. OPIC finds that this requestor is a water right holder with an inherent interest in protecting their use of the San Antonio River. Furthermore, the issues the requestor raises are protected under the law for which this permit will be considered. OPIC therefore recommends that the Commission find that this requestor is an affected person.

¹⁰ 30 TAC § 55.255(b).

b. Guadalupe-Blanco River Authority

On September 22, 2020, the Commission received a hearing request from Tom Bohl on behalf of the Guadalupe-Blanco River Authority (GBRA). GBRA is a legislatively-created entity whose primary duties are “developing, conserving, and protecting the water resources of the Guadalupe-Blanco River Basin.” GBRA has multiple water rights along the basin, including Certificates Nos. 18-2074, 18-5484, 18-5173E, 18-185174E, 18-5175E, 18-5176E, 18-5177E, 18-5178E, and 18-3863D. GBRA is concerned that the future hydrological conditions and the Applicant’s use of the water may potentially affect these rights, as well as other GBRA permits.

The executive director of the TCEQ has created a map demonstrating that GBRA owns water rights downstream from the Applicant’s proposed diversion point. OPIC finds that GBRA is a water right holder with an inherent interest in protecting its use of the San Antonio River. Furthermore, the issues GBRA raises are protected under the law for which this permit will be considered. OPIC therefore recommends that the Commission find that GBRA is an affected person.

c. ADD Corporation (ADD)

On September 21, 2020, the Commission received a hearing request from Richard Ocker on behalf of ADD. ADD owns Certificate No. 19-2179B, which authorizes diversions for mining purposes in portions of Wilson and Karnes County within the San Antonio River Basin. ADD is concerned the proposed permit would reduce stream flows and impact ADD’s ability to divert under their permit.

The executive director of the TCEQ has created a map demonstrating that ADD’s water right is located upstream from the Applicant’s proposed diversion point. The proposed diversions under Applicant’s temporary permit therefore would not interfere with or adversely

affect ADD's appropriations under their water right. For these reasons OPIC finds that ADD is not an affected person, and therefore recommends its request for a contested case hearing be denied.

d. Zachary X. Yanta and Linda A. Yanta

On September 21, 2020, the Commission received a hearing request from Zachary X. Yanta and Linda A. Yanta. The requestors indicate that they own Certificate No. 19-2178D, that allows diversion under a specified reach. This reach includes take points directly downstream of the proposed diversion point. The requestors are concerned that the proposed diversions would decrease streamflow and thereby negatively impact their ability to divert water under their permit.

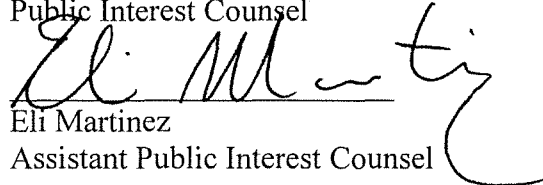
The executive director of the TCEQ has created a map demonstrating that the Yantas' property is along the diversion reach of the proposed permit. OPIC finds that the requestors are water right holders with an inherent interest in protecting their use of the San Antonio River. Furthermore, the issues the requestors raise are protected under the law for which this permit will be considered. OPIC therefore recommends that the Commission find that Zachary X. Yanta and Linda A. Yanta are affected persons.

IV. CONCLUSION

OPIC therefore recommends that the Commission grant the hearing requests of Clifford B. Baker on behalf of the Baker Family River Farm, GBRA, Zachary X. Yanta and Linda A. Yanta. These requestors all own water rights that could potentially be impacted by the proposed permit, and raise justiciable interests not common to members of the general public. Because the water right of ADD Corporation is located upstream of the proposed diversion point, OPIC recommends that the Commission deny their hearing request.

Respectfully submitted,

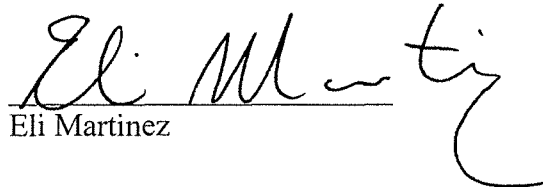
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CERTIFICATE OF SERVICE

I hereby certify that on May 14, 2021, the Office of Public Interest Counsel's Response to Requests for Hearing was filed with the Chief Clerk of the TCEQ, and a copy was served to all persons listed on the attached mailing list via hand delivery, facsimile transmission, Inter-Agency Mail or by deposit in the U.S. Mail.


Eli Martinez

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TCEQ DOCKET NO. 2020-1424-WR

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